TOWN OF MOUNT PLEASANT, SOUTH CAROLINA
BOARD OF ZONING APPEALS
April 25, 2022
MINUTES

STAFF REPORT

Present: Meghan Stevens, Vice-chair, Aaron Butner, Elliott Barrow, Giles Branch, Julian Hopkins, Meghan Stevens.
Absent: Stephen Dukes, Stephen Wood.
Staff: Chris Swalhah, Mac Deford, Lynnette Lynes

Ms. Stevens called the meeting to order at 6:00 pm.

A. Approval of Agenda

- *Mr. Hopkins moved for approval of the agenda. Mr. Butner seconded the motion. All in favor.*

B. Approval of Minutes

- *Mr. Hopkins moved for approval of the minutes. Mr. Butner seconded the motion. All in favor.*

C. Public Comment

- There being no comments, Ms. Stevens continued with the agenda.

D. General Correspondence

All correspondence was linked to the agenda.

E. Explanation of Procedures

- Ms. Stevens reviewed the procedures with the public.

F. Administration of Oath

- Ms. Stevens administered the oath to those speaking.

G. Business

1. Case V-09-2022, 400 Tidal Reef Circle, TMS#5370000147. Request for relief from the strict application of the Belle Hall Planned Development Ordinance to allow a 2.3-foot encroachment into the accessory structure setback. The ordinance requires a six-foot setback for all accessory structures.

- Mr. Swalhah reviewed staff comments with the Board.

- Mr. Donald Lovitt, owner, reviewed the request with the Board.

- There being no comments, Ms. Stevens closed public comment.

- *Mr. Branch moved for approval based on the findings that it meets the criteria as there are extraordinary conditions as the error was done by the previous owner, the conditions do not generally apply to other property, denial would prohibit the use of the property, and if approved there would be no detriment to the neighborhood. Mr. Butner seconded the motion. All in favor.*

2. Case V-10-2022, 768 3rd Street, TMS#5141000086. Request for relief from the strict application of §156.226 to reduce the required mitigation for the removal of significant trees. The ordinance requires the property owner to replant 49 trees or pay $30,000 (or some combination of the two).

- Mr. Swalhah reviewed staff comments with the Board.

- Ms. NaRai Bowen, owner, reviewed the request with the Board.

- Mr. Mark Joye, 172 Wando Reach Court, expressed concern with the trees being removed and that the house is large for the lot. He suggested that the trees were not taken out by mistake. He expressed concern with the house being elevated and that it is not in keeping with the other homes in the neighborhood. He stated that he is opposed to the variance and suggested that payment should not be allowed, but the replacement trees planted.

- Mr. David Creech, 212 Center Street, expressed concern that many of the trees in the Town are being taken down. He stated that he is opposed to the request and asked that the trees should be replanted.

- Ms. Stevens administered the oath to Ms. Bixler.

- Ms. Laurie Bixler, 144 3rd Avenue, stated that she loves trees and suggested that the trees taken down could not be identified nor could it be determined when they were taken down. She suggested that the owner should be allowed to build on their property.

- Ms. Cheryl Shoun, 241 Middle Street, stated that the Town is a proponent of preserving trees and is the reason for the ordinance. She expressed concern that it has become more common to remove trees without permission and ask for forgiveness after-the-fact. She suggested that the variance should be denied and the trees either planted on the property or elsewehere in the Town. If this is not possible, then the monetary mitigation should be required.

Mr. Mark Lee, 735 Third Street, stated that he agrees with the comments made by Ms. Shoun and Mr. Creech. He stated that the trees should be preserved throughout the Town .

- Ms. Bowen rebutted that her initial intention was to renovate the existing home, but the building permit requirements required the home to be elevated. She stated that she is not opposed to planting the mitigation, but the lot will not support all of the mitigation required.

- Mr. Swalhah stated that the new home meets the building requirements with regard to construction within a flood zone and height requirements. He stated that 198 inches of mitigation is required, with a minimum of 4 inches per tree, and if desired a lower number of trees could be planted that were larger in caliper.

- There being no further comments, Ms. Stevens closed public comment.

- *Mr. Barrow moved for denial of the request based on the findings that the trees were removed without permission, all criteria has not been met as there is no proof of any extraordinary conditions as other properties have trees, the property is similar to other properties, the use of the property would not be prohibited or restricted if not approved, and the removal of the trees has a deleterious effect on the neighborhood. He further stated that there is no evidence that the trees were diseased, and pictures have not been corroborated for the trees in question. Mr. Hopkins seconded the motion. All in favor.*

3. Case S-02-2022, 558 Johnnie Dodds Boulevard, TMS# 5140000006. Request for two special exceptions in accordance with §156.326(C)(5)(k) and §156.326(C)(n) to allow a motor vehicle service or repair shop with outdoor storage and/or display in an AB-2 zoned parcel. The ordinance requires properties within the AB-2 zoning district to receive a special exception to allow motor vehicle service or repair and outdoor storage and/or display.

- Mr. Swalhah reviewed staff comments with the Board.

- Mr. Eric Goss reviewed the request with the Board.

- There being no comments, Ms. Stevens closed public comment.

- *Mr. Branch moved for approval of the request based on the findings that all requirements have been met. Mr. Butner seconded the motion. All in favor.*

4. Case V-11-2022, 111 Hyer Street, TMS# 5320900059. Request for relief from the strict application of 156.225(C) to allow the removal of a Historic 30' Live Oak Tree and a Historic 32' Magnolia.

- Mr. Swalhah reviewed staff comments with the Board.

- Mr. Chris Sands, owner, reviewed the request with the Board.

- Mr. Damian Bosillo, architect, stated that they are in favor of replanting trees or paying into the tree bank. He asked that consideration be given for reduction of the mitigation required.

- Mr. Warren Player, 10 Pierates Cruz, suggested that trees do not cause mold in a home. He stated that trees should be preserved as they provide shade, prevent flooding and soil erosion, strengthen the district and preservation of place, encourage local pride. He suggested that selective pruning could be accomplished to provide the needed sunlight and breeze. He asked that the request be denied.

- Mr. David Creech, 212 Center Street, referred to correspondence received in opposition of the request. He suggested that removal of the trees would be detrimental to the neighborhood. He suggested that the trees should be preserved and not allowed to be removed. He stated that the applicant has an approved plan that preserves the live oak. He asked that the request be denied.

- Mr. Robert Burns, 9 Pierates Cruz, stated that the number of trees in the neighborhood are a benefit to the property. He suggested that the property should be allowed to be developed and a new home constructed but with preservation of the trees. He suggested that removal of the trees would detrimentally affect the neighboring properties. He asked that the request be denied.

- Ms. Cheryl Shoun, 241 Middle Street, asked that the Board consider the comments at this meeting and the correspondence received in opposition of the request. She stated that trees provide critical benefits to the property and suggested that the trees would help reduce the amount of moisture and water on the property thereby diminishing the conditions necessary for growth of mold. She suggested that the criteria has not been met for a variance.

- Mr. Sands rebutted that the tree removal is necessary for health reasons. He stated that his sensitivities are to an extreme that

requires the trees to be removed in order to be able to breathe and maintain his quality of health.

- Mr. Swalhah stated that if the tree removal was approved, it could be conditioned to allow submittal of an arborist report indicating the condition and health of the tree that could mean a reduction of mitigation. He also noted that the historic district has flooding issues and this property does have drainage issues that the trees help to "soak up" some of the water. He stated that while there have been improvements to the stormwater system in this area, it not been determined what benefit this has had.

- There being no further comments, Ms. Stevens closed public comment.

- *Mr. Barrow moved for denial of the request based on the findings that the criteria has not been met as there are no extraordinary conditions to the property, the property conditions are not unique and does not apply to other property as the neighborhood has many mature trees, the property would not be prohibited or restricted if denied, health concerns is not included as a reason to grant the variance, and trees provide many benefits to the environment and removal would be a detriment to the public good. Mr. Hopkins seconded the motion. All in favor.*

H. Approval of Final Order

- The Board signed final orders.

There being no further business, the meeting adjourned at 7:32 pm.

Submitted by,
L. Lynes
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